



Control of Office Development Act 1977

1977 CHAPTER 40

An Act to extend the duration of and otherwise amend certain enactments relating to the control of office development in England and Wales. [29th July 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In section 86(1) of the 1971 Act, as substituted by section 5(1) of the Town and Country Planning (Amendment) Act 1972 (under which the enactments relating to the control of office development in England and Wales are to cease to have effect at the end of the period of twelve years beginning with 5th August 1965 or on such earlier date as may be provided by Order in Council), for the words "twelve years", wherever occurring, there shall be substituted the words "seventeen years".

Continuance in force of provisions relating to control of office development.
1971 c. 78.
1972 c. 42.

2.—(1) In section 75 of the 1971 Act (exemption by reference to office floor space), in subsection (8) (Secretary of State's power by order to direct that such number of square feet, whether greater or less than 3,000 but not less than 1,000, as may be specified in the order shall be the prescribed exemption limit for the purposes of that section), before the words "as may be specified" there shall be inserted the words "or such number of square metres (whether greater or less than the equivalent of 3,000 square feet, but not less than the equivalent of 1,000 square feet)".

Power to express prescribed exemption limit in square metres.

(2) In the definition of "the prescribed exemption limit" in section 81(2) of the 1971 Act, after the words "that number of square feet" there shall be inserted the words "or square metres".

Certain orders under s. 74(4) of 1971 Act to be made by S.I. subject to annulment. 3.—(1) Section 287 of the 1971 Act (regulations and orders) shall be amended as follows.

(2) In subsection (4) (orders under certain provisions to be made by statutory instrument) and subsection (9) (power to include supplementary and incidental provisions), for the words "74(4)(b)" (which cover orders under section 74(4) designating areas outside the metropolitan region, but not orders under section 74(4) proviso excluding the whole or a part of that region from the provisions relating to the control of office development) there shall be substituted the words "74(4)".

(3) In subsection (5)(b) (statutory instruments containing orders under certain provisions to be subject to annulment by resolution of either House) at the end add the words "or an order under section 74(4) not falling within subsection (7) of this section,".

Application to local planning authorities of provisions relating to control of office development. 4. In Part V of Schedule 21 to the 1971 Act (provisions of that Act which by virtue of section 270 apply to local planning authorities with such exceptions and modifications as may be prescribed by regulations), after the words "Section 72." there shall be inserted the words "Sections 73 to 86." (which refer to provisions relating to the control of office development).

Citation etc. 5.—(1) This Act may be cited as the Control of Office Development Act 1977.

1971 c. 78. (2) In this Act "the 1971 Act" means the Town and Country Planning Act 1971.

(3) Any increase attributable to this Act in the administrative expenses of the Secretary of State under any other enactment shall be paid out of money provided by Parliament.

(4) This Act extends to England and Wales only.